

Ranno v. State of U.P. and others

Allahabad High Court · Division Bench · 14 July 2021 · WRIT - C No. 15514 of 2021 · WRIT - C No. 15514 of 2021 · **Writ dismissed; consumer relegated to Clause 6.5.**

HEADNOTE

A consumer disputing a first electricity bill alleged to levy charges for years before supply reached the village must invoke Clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer. The High Court will not examine that billing dispute in writ and dismisses the petition for alternative remedy.

FACTUAL SUMMARY

Ranno, a resident of village Sanjay Nagar, Sithua Purwa, Kahingari, Rasulabad, District Kanpur Dehat, stated that the village had no electricity in 2013-14 and that supply first reached her in June 2020, after which she took a connection. A bill dated 29 August 2020, Connection No. 251230 and Account No. 781718447972, included 2 kW charges from 2013 onwards. She challenged that bill in writ against the State and Dakshinanchal Vidyut Vitran Nigam Ltd.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill alternative remedy

HOLDING

Where the consumer disputes an electricity bill, including a first bill alleged to include charges from years before supply reached the village, the proper course is to approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005; the writ petition is dismissed on the ground of that alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the disputed first bill was dismissed so that the consumer could invoke Clause 6.5 before the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A dispute over a bill dated 29 August 2020 that included charges from 2013, when supply was said to have begun only in June 2020, was treated as a Clause 6.5 billing objection for the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 29 AUGUST 2020 BILL CORRECTLY INCLUDED CHARGES FROM 2013 WHEN SUPPLY ALLEGEDLY BEGAN ONLY IN JUNE 2020

Left to the Executive Engineer under Clause 6.5 ¶ 1